BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGWA NFORBI, Plaintiff, v. **HOME DEPOT U.S.A., INC., a Delaware corporation, d/b/a THE HOME DEPOT and THE HOME DEPOT DISTRIBUTION CENTER; and DOES 1 through 20, inclusive,** Defendants.	Case No. _____ **VERIFIED COMPLAINT FOR DAMAGES, DECLARATORY AND INJUNCTIVE RELIEF** (1) Penal Code § 290.46(j); (2) ICRAA, Civ. Code §§ 1786.40, 1786.50; (3) UCL, B&P Code § 17200 *[Unlimited Civil]* *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI ("Plaintiff") alleges as follows:

I.

INTRODUCTION

1. This is an action under Penal Code section 290.46, subdivision (j), for the unauthorized employment use of California Megan's Law registry information. On or about August 2024, Defendant Home Depot U.S.A., Inc. hired Plaintiff to work at its distribution and fulfillment center at 5395 Hopkins Road, Tracy, California 95377. Thereafter, Home Depot made an employment decision concerning Plaintiff. Plaintiff is informed and believes, and on that basis alleges, that Home Depot used information disclosed pursuant to Penal Code section 290.46 — Plaintiff's status as a person required to register under Penal Code section 290, as

published on the California Sex Offender Registry — for purposes relating to that employment.

2. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk. Subdivision (j)(2)(E) prohibits use of that information for purposes relating to employment, except as another law authorizes. A warehouse or fulfillment-center hiring, continuation, or termination decision is a purpose relating to employment.

3. Plaintiff does not allege registry use merely because he is registered. The inference is pleaded on information and belief and rests on concrete facts: (a) Home Depot hired Plaintiff; (b) Home Depot thereafter made an employment decision affecting that hire; (c) Home Depot is a sophisticated national employer that, on information and belief, subjects distribution-center hires to standardized background screening; (d) Plaintiff is, and at the time of the events was, a person whose identifying information appeared on the California Megan's Law website; (e) commercial consumer reporting agencies had already matched this same Plaintiff to the California Sex Offender Registry in an employment report; (f) Home Depot did not, to Plaintiff's knowledge, identify to him any independent, lawful, job-related basis for the decision; and (g) the screening file, adjudication log, and decision-maker communications are exclusively within Defendants' possession.

4. In July 2024 — the same summer as the Home Depot hire — First Advantage prepared an employment background report on Plaintiff for United Parcel Service. That report, later lodged in federal court by UPS, identified a Department of Justice website / National Sex Offender Registry search as decisional, stated 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY,' and produced an overall INELIGIBLE result. That report is not alleged to be the Home Depot report. It is alleged because it shows that, immediately before or contemporaneous with the Home Depot hire, commercial screeners could and did identify this Plaintiff through the California registry and treat that identification as dispositive of

employment eligibility.

5. The contents, vendor, order time, completion time, transmission, access log, adjudication status, and reason codes of any Home Depot background check concerning Plaintiff are exclusively within Defendants' possession. Plaintiff does not attach a Home Depot report because he does not have one. He does not allege the contents of that report as a known fact. Code of Civil Procedure section 425.10 requires a statement of the facts constituting the cause of action in ordinary and concise language. Section 452 requires this Court to construe the pleading liberally with a view to substantial justice between the parties. Facts exclusively in Defendants' possession are properly pleaded on information and belief. Plaintiff states the facts supporting that belief and will seek the report in discovery.

6. Plaintiff does not presently know the legal name of the consumer reporting agency, if any, that Home Depot used. He has sued DOES 1 through 10 for that vendor and for any Home Depot affiliate that was the actual employing or decision-making entity. He does not name The Home Depot, Inc., the publicly traded parent, merely because it owns affiliated entities.

7. This Complaint does not plead a Tameny wrongful-termination count, an IIED count, or a FEHA or Fair Chance Act count. The load-bearing claim is the statutory prohibition in Penal Code section 290.46(j). Companion consumer-report and unfair-competition counts are pleaded only to the extent the same employment use, if proven, also violated those statutes. Plaintiff preserves all timely rights to seek leave to amend if discovery supports additional theories.

II.

PARTIES

8. Plaintiff BRENDAN NGWA NFORBI is a natural person residing in Stockton, San Joaquin County, California. He is also identified in employment and court records as Brendan Ngehsi Ngwanforbi. Those name variants refer to Plaintiff.

9. Plaintiff is required to register under California Penal Code section 290. At all times relevant to this Complaint, information identifying him appeared on California's Megan's Law website and California Sex Offender Registry, operated pursuant to Penal Code section 290.46.

10. Defendant HOME DEPOT U.S.A., INC. ('Home Depot') is a corporation organized under the laws of the State of Delaware, qualified to transact business in California, and doing business as The Home Depot and The Home Depot Distribution Center. On information and belief, Home Depot U.S.A., Inc. owned, operated, staffed, and controlled the distribution and fulfillment center located at 5395 Hopkins Road, Tracy, California 95377 (the 'Tracy Center'), and was the legal employer that hired Plaintiff and made the employment decision challenged here.

11. The Tracy Center is a Home Depot warehouse and fulfillment facility in the International Park of Commerce in Tracy, San Joaquin County. It is a worksite, not a separate legal entity. Plaintiff sues the corporation that operates it.

12. If discovery establishes that another Home Depot subsidiary or affiliate was the employing or decision-making entity, Plaintiff has sued DOES 11 through 15 for that purpose and will amend to substitute the correct entity.

13. On information and belief, Home Depot's designated agent for service of process in

California is CSC Lawyers Incorporating Service, 2710 Gateway Oaks Drive, Suite 150N, Sacramento, California 95833. Plaintiff will serve Home Depot through the agent listed on the California Secretary of State record as of the date of service. Service is not to be made at the Tracy Center merely because that is where Plaintiff worked.

14. The true names and capacities of DOES 1 through 20 are unknown to Plaintiff, who therefore sues them by fictitious names under Code of Civil Procedure section 474. DOES 1 through 10 include the consumer reporting agency, investigative consumer reporting agency, or other vendor that assembled, evaluated, furnished, or scored background information about Plaintiff for Home Depot, and the individuals who ordered, reviewed, or acted on that information. Plaintiff will amend this Complaint when their identities and roles are ascertained.

15. Plaintiff is informed and believes that each DOE Defendant participated in, authorized, directed, furnished information for, implemented, concealed, or ratified one or more acts alleged and is legally responsible for the resulting harm.

III.

JURISDICTION AND VENUE

16. This Court has subject-matter jurisdiction under article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10.

17. This action is properly designated unlimited civil under Code of Civil Procedure sections 85 and 88 because the aggregate relief sought exceeds $35,000, exclusive of interest and costs, including actual, statutory, exemplary, and equitable relief according to proof. No specific personal-injury or punitive-damages amount is pleaded.

18. This Court has personal jurisdiction over Home Depot because Home Depot is

qualified to do business in California, operates the Tracy Center in this County, hired Plaintiff for work in this County, and made or implemented the challenged employment decision in California.

19. Venue is proper in the County of San Joaquin under Code of Civil Procedure sections 395 and 395.5 because Plaintiff resides here, the Tracy Center is here, the hire and the employment decision occurred here, and the liability and injury arose here.

20. Plaintiff has not pleaded a federal claim. If a later amendment adds one, that fact will be stated then. This Complaint is a California statutory action belonging in this Court.

IV.

TIMELINESS

21. Penal Code section 290.46 does not prescribe its own limitations period. This action upon a liability created by that statute is timely under Code of Civil Procedure section 338, subdivision (a), which requires that such an action, other than a penalty or forfeiture, be commenced within three years after accrual.

22. The cause of action accrued, if at all, when Home Depot used registry information for purposes relating to Plaintiff's employment — that is, on the date of the employment decision challenged here, not on the date of hire, and not on the date Plaintiff first registered under section 290.

23. Plaintiff is informed and believes that the challenged employment decision occurred on or after on or about August 2024, and in any event within three years before the filing of this Complaint. The precise day is a fact of Home Depot's personnel and screening records.

24. Plaintiff does not concede that Code of Civil Procedure section 335.1 or section 340, subdivision (a), supplies the limitations period for the section 290.46(j) count. Those statutes, if raised as affirmative defenses, will be addressed on the nature of the right sued upon. Plaintiff does not plead a Tameny or personal-injury count in this Complaint.

V.

COMMON FACTUAL ALLEGATIONS

A. The Tracy Center Hire

25. On or about August 2024, Home Depot hired Plaintiff to work at the Tracy Center, 5395 Hopkins Road, Tracy, California 95377.

26. The hire was for work in San Joaquin County. Plaintiff resided in San Joaquin County and traveled to the Tracy Center for that work.

27. On information and belief, Home Depot required Plaintiff to complete, or caused him to be subjected to, a pre-employment or post-hire background investigation as a condition of the hire, of continued employment, or of assignment at the Tracy Center.

28. Plaintiff does not presently possess a written offer letter, onboarding packet, time records, or wage statements from the Tracy Center hire. Those documents, if they exist, are in Home Depot's possession or the possession of its vendors. Their absence from Plaintiff's files does not negate the hire.

B. The Employment Decision

29. After the hire, Home Depot made an employment decision concerning Plaintiff. On

information and belief, that decision was a termination, discharge, revocation of hire, withdrawal of assignment, or other adverse action that ended or prevented Plaintiff's work at the Tracy Center.

30. To Plaintiff's knowledge, Home Depot did not tell him that the decision rested on a criminal conviction, a safety incident at the Tracy Center, a failed drug screen, a falsified application, or any other independent, lawful, job-related ground. If Home Depot later asserts such a ground, Plaintiff will test it against the contemporaneous file.

31. On information and belief, Home Depot did not provide Plaintiff, before the decision, a copy of any consumer report used in the decision or a written description of his rights under the Fair Credit Reporting Act.

32. On information and belief, Home Depot did not, at the time of the decision, advise Plaintiff that an investigative consumer report had been obtained or supply the name and address of the agency that prepared it, as Civil Code section 1786.40 requires when employment is denied under circumstances in which such a report was obtained.

C. Facts Supporting the Registry-Use Inference

33. Plaintiff is a person as to whom information is disclosed on the California Megan's Law website. That website, and the statute that created it, warn that the information may not be used for employment.

34. Home Depot is among the largest private employers in the United States. On information and belief, it maintains written background-screening policies for distribution-center and fulfillment associates, contracts with one or more consumer reporting agencies, and adjudicates hits through a centralized or regional process rather than by ad hoc

decision of a single Tracy supervisor.

35. On information and belief, the ordinary sequence for a Home Depot Tracy Center hire in 2024 included a background check that searched, or caused a vendor to search, sex-offender registry or Department of Justice public-notification sources, including sources that republish or are derived from California Penal Code section 290.46 disclosures.

36. In July 2024, First Advantage Background Services Corp. matched this Plaintiff to the California Sex Offender Registry on an employment report ordered by United Parcel Service. The report labeled the registry component Decisional and the overall result INELIGIBLE, while a national criminal-file component returned no record. That document is already in a public court file in the Eastern District of California, No. 2:26-cv-02847-DAD-CKD.

37. The First Advantage/UPS report is alleged for three limited purposes: it shows that Plaintiff's registry status was commercially retrievable for employment screening in the same season as the Home Depot hire; it shows that at least one national CRA treated a California-registry source as an employment-eligibility bar for this Plaintiff; and it identifies the kind of record Home Depot's own vendor, whoever that vendor was, would have been able to return. Plaintiff does not allege that First Advantage was Home Depot's vendor, and does not allege that UPS sent its report to Home Depot.

38. On information and belief, Home Depot or its vendor obtained, accessed, displayed, scored, or was informed of information disclosed pursuant to Penal Code section 290.46 concerning Plaintiff — including a California Sex Offender Registry listing, a Department of Justice website result, or a derivative national sex-offender compilation whose source of record was the California registry — in connection with the Tracy Center hire or the later employment decision.

39. On information and belief, Home Depot used that information for purposes relating to employment when it made the decision alleged in paragraph 29. The use was a substantial factor in the decision.

40. The basis for paragraphs 38 and 39 is the combination of: the hire; the subsequent employment decision; Home Depot's ordinary screening practice; Plaintiff's contemporaneous presence on the California registry; the demonstrated commercial retrievability of that listing in July 2024; the absence of any other basis communicated to Plaintiff; and Home Depot's exclusive control of the file that will confirm or refute the inference.

41. Alternative explanations — a safety incident, a no-show, a failed drug screen, a lawful criminal-history adjudication under Labor Code section 432.7 or another authorizing statute, or a business slowdown — can be tested against a discrete set of records. Plaintiff will seek the personnel file, time and pay records, background-check order and report, adjudication notes, and communications of the decision-maker.

42. Penal Code section 290.46(j)(3) does not authorize employment use of Megan's Law website information merely because an employer may obtain criminal-history information from another lawful source. A conviction that appears in ordinary court records is not this claim. This claim is the use of information disclosed pursuant to section 290.46. Lerma v. Amazon.com Services, LLC, C.D. Cal. No. 8:22-cv-01727, Dkt. 36, dismissed a Megan's Law count after the employer's report was in the record and showed ordinary court records and a national sex-offender search returning no record. That dismissal turned on the report. This Complaint does not attach Home Depot's report. A court cannot perform a Lerma analysis on the face of a complaint that does not contain the employer's report. Defendants may not obtain a pleading-stage dismissal by withholding the one document that would confirm or refute the inference. Plaintiff pleads the opposite inference here. If production shows ordinary court

records and no California-registry source, this count will stand or fall on that record — after production, not before.

D. Knowledge, Concealment, and Harm

43. Home Depot knew or should have known that employment use of Megan's Law information is prohibited. The registry website displays that warning. Home Depot is a sophisticated employer with dedicated background-check and legal functions. On information and belief, its vendor contracts and adjudication guides address or should address California registry restrictions.

44. On information and belief, Home Depot did not disclose to Plaintiff that registry information had been obtained or used, and thereby deprived him of a meaningful opportunity to inspect the source, dispute a mismatch, and invoke the statutory remedies before the decision became final.

45. The use was not to protect a person at risk within the meaning of section 290.46(j)(1). A general warehouse or fulfillment assignment at the Tracy Center is not, without more, the narrow authorization that subdivision (j)(1) describes. Plaintiff does not allege facts bringing any other statutory authorization into play, and Home Depot has the burden of proving any such authorization as a defense.

46. As a result of the decision, Plaintiff lost the Tracy Center employment, including the opportunity to earn the wages and benefits of that position, according to proof and subject to mitigation. Plaintiff also suffered emotional distress, humiliation, and anxiety from an unexplained employment decision he is informed and believes rested on a status the Legislature has forbidden employers to use.

47. Plaintiff has sought and continues to seek replacement employment and does not claim a guaranteed lifetime expectancy from an at-will position. Economic damages will be limited to losses proven with reasonable certainty and without double recovery against other dockets that arise from different employers and different decisions.

E. Inspection Rights and Why a Demurrer Cannot Replicate Lerma

48. The section 290.46(j) claim has four elements: (a) information disclosed pursuant to section 290.46; (b) use of that information by a defendant; (c) a purpose relating to employment; and (d) the use was not to protect a person at risk and was not otherwise authorized by law. Plaintiff pleads each element. Elements (a) and (b) are pleaded on information and belief because the report, the source-of-record line, and the adjudication code are exclusively in Defendants' files. Elements (c) and (d) follow from the Tracy Center hire and the later employment decision, which are purposes relating to employment and are not, without more, protection of a person at risk.

49. A demurrer tests the pleading, not the unproduced report. Defendants may deny registry use. They may not convert that denial into a Lerma dismissal while the report remains in their possession. The Second Cause of Action under Civil Code sections 1786.40 and 1786.50 is independent of the registry-use inference. A notice failure can reach discovery even if the section 290.46(j) count later fails on the contents of the report.

50. If Plaintiff was an employee of Home Depot, Labor Code section 1198.5 entitles him to inspect and receive a copy of the personnel records Home Depot maintained relating to his performance or to any grievance concerning him. Plaintiff has not yet served a section 1198.5 request. He will. Those records, together with the background-check order and report, are the discrete set that will confirm or refute registry use. Their present absence from Plaintiff's files is not a defect in this pleading.

VI.

FIRST CAUSE OF ACTION

Unauthorized Employment Use of Registry Information

Penal Code section 290.46(j) — Against All Defendants

51. Plaintiff realleges paragraphs 1 through 50, except allegations expressly pleaded in the alternative are incorporated only to the extent consistent with this cause.

52. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk, except as otherwise authorized by law.

53. Section 290.46(j)(2)(E) prohibits use of information disclosed under that section for purposes relating to employment unless another law authorizes the use.

54. Section 290.46(j)(4)(A) makes the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000).

55. The $25,000 figure in subdivision (j)(4)(A) is a cap on the civil penalty, not a substitute floor that displaces actual damages. Plaintiff seeks the remedies the statute authorizes according to proof.

56. On information and belief, each element alleged in paragraph 48 is satisfied. Home Depot, and such DOE Defendants as ordered, furnished, scored, or acted on the report, used

information disclosed pursuant to section 290.46 concerning Plaintiff.

57. The use related directly to employment: it concerned the Tracy Center hire or the later decision that ended or prevented Plaintiff's work there.

58. The use was not authorized by section 290.46(j)(1) or by any other provision of law applicable to this warehouse and fulfillment assignment.

59. Defendants knew or should have known that employment use was prohibited, for the reasons alleged in paragraph 43.

60. Defendants' use was a substantial factor in the employment decision and caused the loss and injury alleged.

61. Plaintiff seeks the remedies authorized by section 290.46(j)(4)(A), including actual and statutory relief according to proof, and preventive relief under subdivision (j)(4)(B) to restrain any pattern or practice of employment use of Megan's Law information at Home Depot's California facilities, including the Tracy Center.

VII.

SECOND CAUSE OF ACTION

California Investigative Consumer Reporting Agencies Act
Civil Code sections 1786.40 and 1786.50 — Against Home Depot and User DOES
(Pleaded on Information and Belief)

62. Plaintiff realleges paragraphs 1 through 50 and 56 through 60 to the extent consistent with this cause.

63. On information and belief, a consumer reporting agency or investigative consumer reporting agency assembled or evaluated information concerning Plaintiff's character, general reputation, personal characteristics, or mode of living for employment purposes at Home Depot's request.

64. Home Depot procured or caused that report to be prepared and was the user of its information.

65. On information and belief, the report was obtained before Home Depot made the employment decision alleged in paragraph 29.

66. Civil Code section 1786.40(a) required Home Depot, under circumstances in which employment was denied or ended and an investigative consumer report had been obtained, to advise Plaintiff of that fact and supply the agency's name and address.

67. On information and belief, Home Depot did not comply.

68. The omission prevented Plaintiff from timely obtaining the Home Depot-specific report, testing whether its source was the California registry or ordinary court records, and invoking his statutory inspection and dispute rights. This ICRAA count does not depend on proving Penal Code section 290.46(j). A notice failure under Civil Code section 1786.40 is independently actionable if an investigative consumer report was obtained and employment was denied or ended without the required advice. That count can reach discovery even if the registry-use inference later fails.

69. Under Civil Code section 1786.50, Plaintiff seeks actual damages or $10,000, whichever is greater, costs, attorney's fees if later represented, and punitive damages upon proof

of gross negligence or willfulness.

70. This ICRAA count is not a Fair Credit Reporting Act count. Plaintiff has not pleaded 15 U.S.C. section 1681b(b)(3) in this Complaint. He reserves amendment if production shows Home Depot based the decision in whole or in part on a consumer report and failed to provide a copy of the report and a federal rights summary before the adverse action.

71. Plaintiff also reserves amendment under Civil Code section 1786.16 if production shows Home Depot procured the report before providing the required standalone disclosure and obtaining written authorization. He does not presently allege nonauthorization as an established fact.

VIII.

THIRD CAUSE OF ACTION

Unlawful and Unfair Business Practices

Business and Professions Code section 17200 — Against All Defendants

72. Plaintiff realleges paragraphs 1 through 71 to the extent consistent with this equitable cause.

73. Defendants engaged in unlawful practices by violating Penal Code section 290.46(j) and, if proven, Civil Code section 1786.40, as alleged.

74. Defendants engaged in unfair practices by structuring employment screening so a hire at the Tracy Center could be undone on secret registry-derived information while denying the worker the source, the report, and an opportunity to respond.

75. Plaintiff suffered injury in fact and lost money or property through lost wages from the ended Tracy Center employment and other economic losses to be proven. Plaintiff does not seek future unearned wages as UCL restitution. He seeks restitution only of money or property in which he had a vested interest and that Defendants acquired or caused him to lose through the challenged practices.

76. Legal damages are not an adequate remedy for Defendants' retention, use, and dissemination of registry-derived screening data or their ongoing employment-screening practices.

77. Plaintiff seeks an injunction requiring Defendants to cease prohibited employment use of California registry information at California facilities including the Tracy Center; preserve and disclose the source and audit trail of Plaintiff's screening; and correct or segregate unlawfully used data.

78. Plaintiff also seeks restitution and declaratory relief ancillary to the injunction to the extent authorized by Business and Professions Code section 17203.

IX.

PRESERVATION OF EVIDENCE

79. Defendants are on notice to preserve Plaintiff's complete Tracy Center personnel and hiring file, including records subject to Labor Code section 1198.5; offer, onboarding, badge, time, attendance, and pay records; the background-check order, disclosure, authorization, report, component searches, adjudication, access, and cancellation logs; communications of every person who recommended, approved, or implemented the employment decision; vendor contracts and adjudication guides in effect in 2024; and policies governing Megan's Law, FCRA, ICRAA, and fair-chance review.

80. Relevant electronically stored information includes applicant-tracking and HRIS audit fields, event timestamps, reason codes, report-view logs, emails, chats, SMS, and data-retention records from July 1, 2024 through December 31, 2024, and any later date on which the employment decision was recorded or revisited.

81. The July 2024 First Advantage/UPS report is relevant to retrievability and matching methodology. It is not a substitute for Home Depot's own file.

X.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants as follows:

1. For actual, consequential, and economic damages according to proof, without double recovery;

2. For the remedies authorized by Penal Code section 290.46(j)(4)(A), including statutory, treble, exemplary, or civil-penalty relief as the trier of fact and law permit;

3. For ICRAA actual damages or $10,000, whichever is greater, and punitive damages upon the showing required by Civil Code section 1786.50, if that count is proven;

4. For punitive damages against only those Defendants for whom Civil Code section 3294 is proven, in an amount to be determined by the trier of fact, with no amount pleaded;

5. For restitution under Business and Professions Code section 17203 to the extent

available;

6. For preventive and injunctive relief under Penal Code section 290.46(j)(4)(B), Business and Professions Code section 17203, and other applicable law;

7. For declaratory relief concerning Defendants' prohibited registry use to the extent an actual controversy remains;

8. For costs of suit and attorney's fees where authorized if Plaintiff obtains counsel;

9. For prejudgment and post-judgment interest as allowed by law; and

10. For such other relief as the Court deems just and proper.

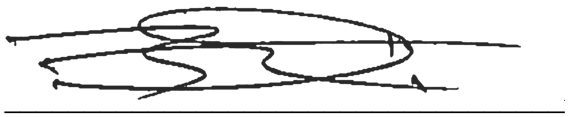
XI.

DEMAND FOR JURY TRIAL

82. Plaintiff demands trial by jury on all causes of action and issues so triable.

Dated: September 8, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

VERIFICATION

STATE OF CALIFORNIA, COUNTY OF SAN JOAQUIN

I, BRENDAN NGWA NFORBI, declare:

I am the Plaintiff in this action. I have read the foregoing VERIFIED COMPLAINT and know its contents. The matters stated are true of my own knowledge, except those stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on September 8, 2026, at Stockton, California.



BRENDAN NGWA NFORBI